

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1687

By: Hines of the Senate

and

Miller of the House

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9 An Act relating to driver licenses; amending 47 O.S.
10 2021, Sections 6-105, as last amended by Section 3,
11 Chapter 11, O.S.L. 2024, and 6-110, as last amended
12 by Section 4, Chapter 450, O.S.L. 2024 (47 O.S. Supp.
13 2025, Sections 6-105 and 6-110), which relate to
14 driver licenses; adding certain age requirement for
15 qualification for certain license; permitting certain
16 persons to proctor certain examination; updating
17 statutory language; updating statutory references;
18 and providing an effective date.

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24 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 47 O.S. 2021, Section 6-105, as
last amended by Section 3, Chapter 11, O.S.L. 2024 (47 O.S. Supp.
2025, Section 6-105), is amended to read as follows:

Section 6-105. A. Unless a legal custodial parent or legal
guardian has filed an objection to licensure pursuant to Section 6-
103.1 of this title, any person under eighteen (18) years of age who
is in compliance with or not subject to Section 6-107.3 of this
title may be permitted to operate:

1 1. A Class D motor vehicle under the graduated driver license
2 provisions prescribed in subsections B through E of this section;

3 2. A motorcycle under the provisions prescribed in subsection H
4 of this section; or

5 3. A farm vehicle under the provisions prescribed in subsection
6 I of this section.

7 B. Any person who is at least fifteen (15) years of age may
8 drive during a session in which the driver is being instructed in a
9 driver education course, as set out in subparagraphs a, b, c, d and
10 e of paragraph 1 of subsection C of this section, by a certified
11 driver education instructor who is seated in the right front seat of
12 the motor vehicle.

13 C. Any person:

14 1. Who is at least fifteen (15) years of age and is currently
15 receiving instruction in or has successfully completed driver
16 education. For purposes of this section, the term "driver
17 education" shall mean:

18 a. a prescribed secondary school driver education course,
19 as provided for in Sections 19-113 through 19-121 of
20 Title 70 of the Oklahoma Statutes,

21 b. a driver education course, certified by Service
22 Oklahoma, from a parochial, private, or other
23 nonpublic secondary school,
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1 c. a commercial driver training course, as defined by
2 Sections 801 through 808 of this title,

3 d. a parent-taught driver education course, certified by
4 Service of Oklahoma, in conjunction with the
5 Department of Public Safety. Service Oklahoma shall
6 promulgate rules for any parent-taught driver
7 education course, or

8 e. a driver education course certified by a state other
9 than Oklahoma; or

10 2. Who is at least sixteen (16) years of age,

11 may, upon successfully passing all parts of the driver license
12 examination administered by Service Oklahoma, or an approved written
13 examination proctor, except the driving examination, be issued a
14 learner permit which will grant the permittee the privilege to
15 operate a Class D motor vehicle upon the public highways only
16 between the hours of 5:00 a.m. and 10:00 p.m. and while accompanied
17 by a licensed driver who is at least twenty-one (21) years of age
18 and who is actually occupying a seat beside the permittee; provided,
19 the written examination for a learner permit may be waived by
20 Service Oklahoma upon verification that the person has successfully
21 completed driver education.

22 D. 1. Any person:
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- 1 a. who has applied for, been issued, and has possessed a
2 learner permit for a minimum of one hundred eighty
3 (180) days,
4 b. whose custodial legal parent or legal guardian
5 certifies to Service Oklahoma by sworn affidavit that
6 the person has received a minimum of fifty (50) hours
7 of actual behind-the-wheel training, of which at least
8 ten (10) hours of such training was at night, from a
9 licensed driver who was at least twenty-one (21) years
10 of age and who was properly licensed to operate a
11 Class D motor vehicle for a minimum of two (2) years,
12 and
13 c. who is at least sixteen (16) years of age,

14 may be issued an intermediate Class D license upon successfully
15 passing all parts of the driver license examinations administered by
16 Service Oklahoma; provided, the written examination, if it has not
17 previously been administered or waived, may be waived by Service
18 Oklahoma upon verification that the person has successfully
19 completed driver education or the driving examination may be waived
20 by Service Oklahoma upon successful passage of the examination
21 administered by a certified designated examiner, as provided for in
22 Section 6-110 of this title. However, notwithstanding the date of
23 issuance of the learner permit, if the person has been convicted of
24 a traffic offense which is reported on the driving record of that

1 person, the time period specified in subparagraph a of this
2 paragraph shall be recalculated to begin from the date of conviction
3 for the traffic offense, and must elapse before that person may be
4 issued an intermediate Class D license. If the person has been
5 convicted of more than one traffic offense which is reported on the
6 driving record of that person, the time period specified in
7 subparagraph a of this paragraph shall be recalculated to begin from
8 the most recent date of conviction, and must elapse before that
9 person may be issued an intermediate Class D license.

10 2. A person who has been issued an intermediate Class D license
11 under the provisions of this subsection:

12 a. shall be granted the privilege to operate a Class D
13 motor vehicle upon the public highways:

14 (1) only between the hours of 5:00 a.m. and 10:00

15 p.m., except for driving to and from work,
16 school, school activities, and church activities,
17 or

18 (2) at any time, if a licensed driver who is at least
19 twenty-one (21) years of age is actually
20 occupying a seat beside the intermediate Class D
21 licensee, or if the intermediate Class D licensee
22 is a farm or ranch resident, and is operating a
23 motor vehicle while engaged in farming or
24 ranching operations outside the limits of a

1 municipality, or driving to and from work,
2 school, school activities, or church activities,
3 and

4 b. shall not operate a motor vehicle with more than one
5 passenger unless:

6 (1) all passengers live in the same household as the
7 custodial legal parent or legal guardian, or

8 (2) a licensed driver at least twenty-one (21) years
9 of age is actually occupying a seat beside the
10 intermediate Class D licensee.

11 E. Any person who has been issued an intermediate Class D
12 license for a minimum of:

13 1. One (1) year, if the person is eighteen (18) years of age;

14 or

15 2. One hundred eighty (180) days, if the person has completed
16 both the driver education and the parent-certified behind-the-wheel
17 training provisions of subparagraph b of paragraph 1 of subsection D
18 of this section,

19 may be issued a Class D license. However, notwithstanding the date
20 of issuance of the Class D license, if the person has been convicted
21 of a traffic offense which is reported on the driving record of that
22 person, the time periods specified in paragraph 1 or 2 of this
23 subsection, as applicable, shall be recalculated to begin from the
24 date of conviction for the traffic offense, and must elapse before

1 that person may be issued a Class D license. If the person has been
2 convicted of more than one traffic offense which is reported on the
3 driving record of that person, the time periods specified in
4 paragraph 1 or 2 of this subsection, as applicable, shall be
5 recalculated to begin from the most recent date of conviction, and
6 must elapse before that person may be issued a Class D license.

7 F. Learner permits and intermediate Class D licenses shall be
8 issued for the same period as all other driver licenses. The
9 licenses may be suspended or canceled at the discretion of the
10 Department of Public Safety, with notice to Service Oklahoma, for
11 violation of restrictions, for failing to give the required or
12 correct information on the application, for knowingly giving false
13 or inaccurate information on the application or any subsequent
14 documentation related to the granting of driving privileges, for
15 using a ~~hand-held~~ handheld electronic device while operating a motor
16 vehicle for non-life-threatening emergency purposes or for violation
17 of any traffic laws of this state pertaining to the operation of a
18 motor vehicle.

19 G. Service Oklahoma shall promulgate rules establishing
20 procedures for removal of learner permit and intermediate Class D
21 license restrictions from the permit or license upon the permittee
22 or licensee qualifying for a less restricted or an unrestricted
23 license.
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1 H. Any person fourteen (14) years of age or older may apply for
2 a restricted Class D license with a motorcycle-only restriction.
3 After the person has successfully passed all parts of the motorcycle
4 examination other than the driving examination, has successfully
5 completed a certified state-approved motorcycle basic rider course
6 approved by the Department of Public Safety, in conjunction with
7 Service Oklahoma, and has met all requirements provided for in the
8 rules of the Department and Service Oklahoma, Service Oklahoma shall
9 issue to the person a restricted Class D license with a motorcycle-
10 only restriction which shall grant to the person, while having the
11 license in the person's immediate possession, the privilege to
12 operate a motorcycle or motor-driven cycle:

13 1. With a piston displacement not to exceed three hundred ~~(300)~~
14 cubic centimeters (300 cc);

15 2. Between the hours of 4:30 a.m. to 9:00 p.m. only;

16 3. While wearing approved protective headgear; and

17 4. While accompanied by and receiving instruction from any
18 person who is at least twenty-one (21) years of age and who is
19 properly licensed pursuant to the laws of this state to operate a
20 motorcycle or motor-driven cycle, and who has visual contact with
21 the restricted licensee.

22 The restricted licensee may apply on or after thirty (30) days
23 from date of issuance of the restricted Class D license with a
24 motorcycle-only restriction to have the restriction of being

1 accompanied by a licensed driver removed by successfully completing
2 the driving portion of an examination.

3 The written examination and driving examination for a restricted
4 Class D license with a motorcycle-only endorsement shall be waived
5 by Service Oklahoma upon verification that the person has
6 successfully completed a certified state-approved motorcycle basic
7 rider course approved by the Department and Service Oklahoma.

8 I. Service Oklahoma may in its discretion issue a special
9 permit to any person who has attained the age of fourteen (14)
10 years, authorizing such person to operate farm vehicles between the
11 farm and the market to haul commodities grown on the farm; provided,
12 that the special permit shall be temporary and shall expire not more
13 than thirty (30) days after the issuance of the special permit.
14 Special permits shall be issued only to farm residents and shall be
15 issued only during the time of the harvest of the principal crops
16 grown on such farm. Provided, however, Service Oklahoma shall not
17 issue a special permit pursuant to this subsection until Service
18 Oklahoma is fully satisfied after the examination of the application
19 and other evidence furnished in support thereof, that the person is
20 physically and mentally developed to such a degree that the
21 operation of a motor vehicle by the person would not be inimical to
22 public safety.

23 J. As used in this section:
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1 1. ~~"Hand-held~~ "Handheld electronic device" means a mobile
2 telephone or electronic device with which a user engages in a
3 telephone call, plays or stores media, including but not limited to
4 music and video, or sends or reads a text message while requiring
5 the use of at least one hand; and

6 2. "Using a ~~hand-held~~ handheld electronic device" means
7 engaging any function on an electronic device.

8 K. All driver education courses provided for in paragraph 1 of
9 subsection C of this section shall include education regarding the
10 dangers of texting while driving and the effects of being under the
11 influence of alcohol or other intoxicating substance while driving.

12 SECTION 2. AMENDATORY 47 O.S. 2021, Section 6-110, as
13 last amended by Section 4, Chapter 450, O.S.L. 2024 (47 O.S. Supp.
14 2025, Section 6-110), is amended to read as follows:

15 Section 6-110. A. 1. Service Oklahoma shall establish
16 procedures to ensure every applicant for an original Class A, B, C,
17 or D license and for any endorsements thereon is examined by Service
18 Oklahoma, or an approved written examination proctor, except as
19 otherwise provided in Section 6-101 et seq. of this title or as
20 provided in paragraph 2 of this subsection or in subsections D and E
21 of this section. Service Oklahoma ~~is authorized to~~ shall authorize,
22 approve, and enter into agreements with third parties including, but
23 not limited to, public school districts, technology center districts
24 overseen by the Oklahoma Department of Career and Technology

1 Education, institutions of higher education, or commercial driver
2 training schools, to act as approved written examination proctors
3 with regard to any written examination required by this section.

4 The examination shall include a test of the applicant's:

- 5 a. eyesight,
- 6 b. ability to read and understand highway signs
7 regulating, warning, and directing traffic,
- 8 c. knowledge of the traffic laws of this state including
9 a portion on bicycle and motorcycle safety, and
- 10 d. ability, by actual demonstration, to exercise ordinary
11 and reasonable control in the operation of a motor
12 vehicle. The actual demonstration shall be conducted
13 in the type of motor vehicle for the class of driver
14 license being applied for.

15 The Department of Public Safety, in conjunction with Service
16 Oklahoma, may create a knowledge test that may be taken on the
17 Internet by an applicant applying for a Class D license.

18 Any licensee seeking to apply for a driver license of another class
19 which is not covered by the licensee's current driver license shall
20 be considered an applicant for an original license for that class.

21 2. Service Oklahoma shall have the authority to waive the
22 requirement of any part of the examination required in paragraph 1
23 of this subsection for those applicants whose driving record meets
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1 the standards set by the Department of Public Safety and surrender
2 either of the following:

- 3 a. a valid unexpired driver license issued by any state
4 or country for the same type or types of vehicles, or
- 5 b. an expired driver license that:

- 6 (1) is not expired more than six (6) months past the
7 expiration date listed on the driver license, and
- 8 (2) is not a Class A, B, C or C commercial driver
9 license or commercial driver license permit.

10 3. Service Oklahoma shall accept skills test results from
11 another state for Class A, B, C or C license applicants who have
12 successfully completed commercial motor vehicle driver training in
13 that state and successfully passed the skills test in that state;
14 provided, Service Oklahoma shall not accept skills test results from
15 another state when the applicant has not successfully completed
16 commercial motor vehicle driver training in that state. Nothing in
17 this section shall be construed to prohibit Service Oklahoma from
18 administering the skills test to any applicant who has successfully
19 completed commercial vehicle driver training in another state.

20 4. All applicants requiring a hazardous materials endorsement
21 shall be required, for the renewal of the endorsement, to
22 successfully complete the examination and to submit to a security
23 threat assessment performed by the Transportation Security
24 Administration of the Department of Homeland Security as required by

1 and pursuant to 49 C.F.R., Part 1572, which shall be used to
2 determine whether the applicant is eligible for renewal of the
3 endorsement pursuant to federal law and regulation.

4 5. Service Oklahoma, or an approved written examination
5 proctor, shall give the complete examination as provided for in this
6 section within thirty (30) days from the date the application is
7 received, and the examination shall be given at a location within
8 one hundred (100) miles of the residence of the applicant. Service
9 Oklahoma shall make every effort to make the examination locations
10 and times convenient for applicants. Service Oklahoma shall
11 consider giving the examination at any public or private site, if
12 economically feasible and practicable, and if Service Oklahoma and
13 the owner or the governing body agree.

14 B. Any person holding a valid Oklahoma Class D license or
15 provisional driver license pursuant to Section 6-212 of this title
16 and applying for a Class A, B or C commercial license shall be
17 required to successfully complete all examinations as required for
18 the specified class. Failure to submit to Service Oklahoma
19 federally required medical certification information pursuant to 49
20 C.F.R., Part 391.41 et seq. shall result in an automatic downgrade
21 of a commercial license to a Class D license. Provided, however,
22 once the required medical certification information has been
23 received by Service Oklahoma, the license shall be reinstated to the
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1 classification of the commercial license prior to the downgrade and
2 the holder of such a license shall not be required to reapply.

3 C. Except as provided in subsection E of Section 6-101 of this
4 title, any person holding a valid Oklahoma Class A, B or C
5 commercial license shall, upon time for renewal thereof, be entitled
6 to a Class D license without any type of testing or examination,
7 except for any endorsements thereon as otherwise provided for by
8 Section 6-110.1 of this title.

9 D. 1. Any certified driver education instructor who is
10 currently an operator or an employee of a commercial driver training
11 school in this state or any driver education instructor employed by
12 any school district in this state shall be eligible to apply to be a
13 designated examiner of Service Oklahoma for the purposes of
14 administering the Class D driving skills portion of the Oklahoma
15 driving examination to any person who is eligible to take the
16 Oklahoma driving examination including, but not limited to, a person
17 who has been issued a learner permit or farm permit. Service
18 Oklahoma shall to the maximum extent possible accept electronic
19 signatures for all applications to be a designated examiner. A
20 certified driver education instructor or designated examiner shall
21 be permitted to proctor the knowledge written examination.

22 2. The Department of Public Safety, in conjunction with Service
23 Oklahoma, shall adopt a curriculum of required courses and training
24 to be offered to applicants who are qualified to apply to be a

1 designated examiner. The courses and training for certification
2 shall meet the same standards as required for driver examiners of
3 Service Oklahoma. Within thirty (30) days of ~~the effective date of~~
4 ~~this act~~ November 1, 2024, and by October 1 of each subsequent year,
5 Service Oklahoma shall publish a schedule for the subsequent
6 calendar year of courses and trainings which shall occur no less
7 than twice per calendar year. Service Oklahoma may schedule
8 additional courses and trainings based on demand. Service Oklahoma
9 shall disclose how many slots are available for each course or
10 training and any restrictions on how those slots may be allocated at
11 the time of publishing the schedule.

12 3. Each person applying to be a designated examiner shall be
13 required to pay an initial designated examiner certification fee of
14 One Thousand Dollars (\$1,000.00). Upon successful completion of
15 training prescribed by paragraph 2 of this subsection, the person
16 shall be required to pay an annual designated examiner certification
17 fee of Five Hundred Dollars (\$500.00). If an applicant for the
18 designated examiner program is employed by an Oklahoma public school
19 system that offers driver education, and he or she administers the
20 skills test only to students enrolled in a public school driver
21 education program, the certification fee may be waived by Service
22 Oklahoma. Each designated examiner certification shall expire on
23 the last day of the calendar year and may be renewed upon
24 application to Service Oklahoma. The designated examiner

1 certification fees collected by Service Oklahoma pursuant to this
2 subsection shall be deposited to the credit of the Department of
3 Public Safety Restricted Revolving Fund to be used for the purposes
4 of this subsection, through October 31, 2022. Beginning November 1,
5 2022, the designated examiner certification fees collected by
6 Service Oklahoma pursuant to this subsection shall be deposited to
7 the credit of the Service Oklahoma Revolving Fund. No designated
8 examiner certification fee shall be refunded in the event that
9 certification is denied, suspended, or revoked.

10 4. A designated examiner may charge a fee for each Class D
11 driving skills examination given, whether the person being examined
12 passes or fails the examination.

13 5. Service Oklahoma shall conduct an annual complete nationwide
14 criminal history background check on each designated examiner and a
15 complete nationwide criminal history background check on each
16 designated examiner applicant. The fees for the background check
17 shall be borne by the designated examiner or designated examiner
18 applicant.

19 6. The Department of Public Safety, in conjunction with Service
20 Oklahoma, shall promulgate rules to implement and administer the
21 provisions of this subsection.

22 E. 1. Upon application and approval of Service Oklahoma, any
23 public or private commercial truck driving school that has or
24 maintains a program instructing students for a Class A, B or C

1 license, public transit agency, state, county, or municipal
2 government agency in this state, such as local school districts, the
3 Oklahoma Department of Career and Technology Education, or
4 institutions of higher education, or a private entity, shall be
5 authorized to hire or employ designated examiners approved by
6 Service Oklahoma to be third-party examiners of the Class A, B, or C
7 driving skills portion ~~and/or~~ or knowledge written portion, pursuant
8 to subsection A of this section, of the Oklahoma driving
9 examination. All designated examiners must successfully have
10 completed the courses and training as outlined in paragraph 2 of
11 this subsection. Service Oklahoma shall be required to approve at
12 least one public transit agency that has or maintains a program
13 instructing students for a Class A, B, or C license to hire or
14 employ third-party examiners pursuant to this section. It shall be
15 permissible for any public transit agency operating in this state to
16 utilize the third-party examiners hired or employed by a public
17 transit agency approved by Service Oklahoma.

18 2. The Department of Public Safety, in conjunction with Service
19 Oklahoma, shall adopt a curriculum of required courses and training
20 to be offered to third-party examiners. The courses and training
21 for certification shall meet the same standards as required for
22 commercial driver examiners of Service Oklahoma.

23 3. Service Oklahoma shall require each third-party examiner
24 applicant and commercial school driver education instructor

1 applicant to submit to an electronic national criminal history
2 record check pursuant to Section 150.9 of Title 74 of the Oklahoma
3 Statutes. On or before December 1, 2022, Service Oklahoma shall
4 require each third-party examiner or commercial school driver
5 education instructor to submit to an electronic national criminal
6 history record check pursuant to Section 150.9 of Title 74 of the
7 Oklahoma Statutes. The fees for the background check shall be borne
8 by the third-party examiner, third-party examiner applicant,
9 commercial school driver education instructor, or commercial school
10 driver education instructor applicant.

11 F. Service Oklahoma shall promulgate rules to:

12 1. Implement and administer the provisions of this section
13 based on requirements set forth in 49 C.F.R., Section 383.75 ~~of~~
14 ~~Title 49 of the Code of Federal Regulations;~~

15 2. Establish a process to inform any school, public transit
16 agency, examiner, or state, county, or municipal government agency,
17 who has been denied, within forty-five (45) days from the denial;

18 3. Create an appeal process for any school, public transit
19 agency, examiner, or state, county, or municipal government agency
20 denied; and

21 4. If the initial application for approval was denied, limit
22 the number of times an individual school, public transit agency,
23 individual examiner applicant, or state, county, or municipal
24

1 government agency may reapply in a calendar year to two
2 reapplications.

3 SECTION 3. This act shall become effective November 1, 2026.

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5 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
6 OVERSIGHT, dated 04/14/2026 - DO PASS.

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